

Atlanta Police Department

Patrol Division — Traffic Services
226 Peachtree Street NW, Atlanta, GA 30303

OFFICIAL TRAFFIC COLLISION REPORT

(404) 555-0164 | Emergency: 911

CASE NUMBER	APD-26-04-22-2201	WEATHER	Clear / Sunny
DATE OF INCIDENT	April 22, 2026	LIGHT CONDITIONS	Daylight
TIME OF INCIDENT	14:38 hrs	ROADWAY SURFACE	Dry
LOCATION	Peachtree Street NE & 10th Street NE (crosswalk), Atlanta, GA 30309	TYPE OF COLLISION / VEHICLES	Vehicle-pedestrian strike / 1 vehicle

SECTION 1 — RESPONDING UNITS

Responding Agency	Atlanta Police Department
Investigating Officer	Officer Marcus D. Fleming, Badge #7723
Officer Phone	(404) 555-0164 ext. 308
EMS Agency	Atlanta Fire Rescue — Medic 11 (transported pedestrian critical)
Tow Companies	Peach State Towing (V1)

SECTION 2 — VEHICLES

#	Year / Make / Model	VIN	Plate	Damage
V1	2016 Toyota RAV4	JTMBFREV5GJ115724	RBX-4489 (GA)	Front bumper cracked; hood leading edge dented; windshield cracked (pedestrian contact)

SECTION 3 — DRIVERS / OPERATORS

Party	Name	DOB	License	Citation
Driver V1	Kevin M. Abernathy	12/09/1980	GA-A77234019	GA OCGA §40-6-93 — Failure to Yield to Pedestrian in Crosswalk

SECTION 4 — PASSENGERS

Veh	Name	DOB	Injury	Transported
PED	James T. Washington	03/17/1971	Lower left leg fracture; lacerations; head contusion — serious injury	Yes — Atlanta Fire Rescue Medic 11, to Grady Memorial Hospital (critical status)

SECTION 5 — WITNESSES

#	Name	Address	Phone	Statement
W1	Carmen L. Ruiz	987 Peachtree Street NE, Atlanta, GA 30309	(404) 555-0217	Yes — written statement at scene
W2	Omar S. Bilal	1024 Monroe Drive NE, Atlanta, GA 30306	(404) 555-0388	Yes — written statement at scene

SECTION 6 — PROPERTY DAMAGE (NON-VEHICLE)

None.

SECTION 7 — NARRATIVE

On Wednesday April 22, 2026 at approximately 14:38 hrs, this officer was dispatched to Peachtree Street NE at 10th Street NE on report of a vehicle-pedestrian collision with serious injuries. Conditions were clear and dry with full daylight visibility. V1 (2016 Toyota RAV4, Abernathy) was traveling southbound on Peachtree Street NE. Pedestrian James Washington was crossing Peachtree Street NE at the marked crosswalk at 10th Street NE with the pedestrian walk signal active. V1 entered the intersection and struck the pedestrian at the marked crosswalk, making contact with the pedestrian's lower body and windshield. The pedestrian was thrown approximately six feet by the impact. Witnesses Carmen Ruiz and Omar Bilal, both positioned on the sidewalk at 10th Street NE, independently confirmed that the pedestrian walk signal was active and that V1 did not appear to brake prior to contact. Driver Abernathy stated he did not observe the pedestrian in time to stop. James Washington was transported in critical condition by Atlanta Fire Rescue Medic 11 to Grady Memorial Hospital with a lower left leg fracture, head contusion, and multiple lacerations. Driver Abernathy was uninjured and declined medical evaluation. V1 was towed by Peach State Towing as the windshield was compromised and the vehicle was deemed unsafe to drive. Driver Abernathy was cited under GA OCGA §40-6-93. Traffic enforcement camera footage was requested from the City of Atlanta ATMS system and is pending review.

SECTION 8 — OFFICER SIGN-OFF

signed

Officer Marcus D. Fleming, Badge #7723

Investigating Officer, Atlanta Police Department Traffic Services

April 22, 2026

Date